

SENATE No. 3168

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, July 6, 2026.

The committee on Transportation, to whom was referred the petitions (accompanied by bill, Senate, No. 2347) of Nick Collins for legislation to establish a task force to improve enforcement of existing laws governing motorized bicycles, motorized scooters, electric bicycles and mopeds and implement fines for certain offenses; (accompanied by bill, Senate, No. 2373) of Sal N. DiDomenico, Steven Owens and Bruce E. Tarr for legislation relative to class 3 electric bicycles; and (accompanied by resolve, Senate, No. 2432) of Patrick M. O'Connor that provisions be made to establish a special commission (including members of the General Court) to evaluate and study pedestrians safety through moped law enforcement, report the accompanying bill (Senate, No. 3168).

For the committee,
Brendan P. Crighton

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An Act to enhance the safe use of micromobility devices.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of the chapter 90 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by inserting after the definition of “Class 2 e-bikes” the
3 following definition:-

4 “Class 3 e-bikes”, an electric bicycle or tricycle equipped with a motor that provides
5 assistance only when the rider is pedaling, and that ceases to provide assistance when the bicycle
6 reaches or exceeds the speed of 28 miles per hour.

7 SECTION 2. Said section 1 of said chapter 90, as so appearing, is hereby further
8 amended by inserting after the definition of “cross-over mirror” the following definition:-

9 “Cycle”, a powered or unpowered device with functional human powered pedals or a
10 device without human powered pedals on which a rider is seated during operation, including
11 bicycles as defined in section 1 of chapter 90E.

SECTION 3. Said section 1 of said chapter 90, as so appearing, is hereby further amended by inserting, in line 104, after the word “bicycle”, the second time it appears, the following words:- , or a class 3 electric bicycle; provided, that the definition of "electric bicycle" shall not include a motorized bicycle.

SECTION 4. Said section 1 is hereby further amended by inserting after the definition of “Low-speed motor vehicle” or “low-speed vehicle” the following definition:-

“Nationally recognized testing laboratory”, the same meaning as defined in 29 C.F.R 1910.7.

SECTION 5. Said section 1 is hereby further amended by inserting after the definition of “Massachusetts License” the following definition:-

“Micromobility device”, a small, lightweight transportation device intended for personal use as an alternative to motor vehicles for travel in public access areas including ways, bikeways or sidewalks, and as may be further defined by regulations promulgated by the registrar; provided a “micromobility device” shall not include a motor vehicle, motorcycle, motorized bicycles or mopeds, low speed vehicle, or limited use/low speed motorcycle.

SECTION 6. Said section 1 of said section 90, as so appearing, is hereby further amended by inserting after the definition of “mobile telephone” the following 2 definitions:-

“Mobility aid device”, a device used by a pedestrian with a mobility disability to assist with indoor and outdoor locomotion including electric personal assistive mobility device referenced in the definition of vulnerable user definition, group wheelchairs, mobility carts and other such devices.

33 “Moped”, the same meaning as “motorized bicycle”.

34 SECTION 7. Said section 1 of said chapter 90, as so appearing, is hereby further
35 amended by striking out the definition of “Motorized bicycle” and inserting in place thereof the
36 following definition:-

37 “Motorized bicycle”, a pedal bicycle which has a helper motor, or a non-pedal bicycle
38 which has a motor, with either a cylinder capacity not exceeding 50 cubic centimeters or the
39 hybrid or electric powered equivalent, an automatic transmission, and which is capable of a
40 maximum speed of no more than 30 miles per hour; provided, that the definition of “motorized
41 bicycle” shall not include an electric bicycle.

42 SECTION 8. Said section 1 of said chapter 90, as so appearing, is hereby further
43 amended by striking out the definition of “Motorized scooter”.

44 SECTION 9. Said section 1 of said chapter 90, as so appearing, is hereby further
45 amended by inserting after the definition of “Police officer” the following definition:-

46 “Powered micromobility device”, A micromobility device that has an onboard motor
47 capable of delivering tractive power to the device either as power-assist to human powered
48 propulsion or as sole propulsion or throttle. Powered micromobility devices shall (i) include
49 electronic scooters, skateboards, hoverboards, unicycles etc. and (ii) exclude mobility aid
50 devices.

51 SECTION 10. Said section 1 is hereby further amended by inserting after the definition
52 of “School pupil” the following 2 definitions:-

53 “Scooter”, a powered or unpowered device without pedals where the rider can sit and/or
54 stand on a footboard for typical operation.

55 “Solely Human Powered or Unpowered micromobility device”, a micromobility device
56 propelled exclusively by human muscular effort and has no onboard motor capable of delivering
57 tractive power to the device; provided further that “Solely Human powered micromobility
58 devices shall: (i) include, but not be limited to, non-electric bicycles, unpowered scooters,
59 skateboards, longboards, unicycles, roller skates, inline skates and other such unpowered
60 micromobility devices and (ii) not include mobility aid devices.

61 SECTION 11. Section 1B of said chapter 90, as so appearing, is hereby amended by
62 striking out, in line 1, the word “A” and inserting in place thereof the following words:- A
63 motorized bicycle shall not be operated upon any way, as defined in section one within the
64 commonwealth without obtaining an annual registration and sticker or plate bearing a distinctive
65 number, by application as prescribed by the registrar.

66 SECTION 12. The first paragraph of said section 1B of said chapter 90, as so appearing,
67 is hereby further amended by striking out the last sentence and inserting in place thereof the
68 following sentence:- Motorized bicycles shall be excluded from operating on bike lanes and off-
69 street recreational bicycle paths.

70 SECTION 13. Said section 1B of said chapter 90, as so appearing, is hereby further
71 amended by adding the following paragraph:-

72 No motorized bicycle shall be registered under this section unless the application therefor
73 is accompanied by a certificate as defined in section 34A or unless the registrar is otherwise

satisfied that the provision of compulsory liability insurance has been met for such applicant and motorized bicycle.

SECTION 14. Section 1C of said chapter 90, as so appearing, is hereby amended by striking out, in line 1, the words “and motorized scooters”.

SECTION 15. Said chapter 90, as so appearing, is hereby amended by striking out section 1E.

SECTION 16. Said chapter 90, as so appearing, is hereby further amended by inserting after section 2 the following section:-

Section 2 ½. Notwithstanding any special or general law to the contrary, the registrar of motor vehicles may issue number or registration plates of such size and design as determined in their discretion for motor vehicles or micromobility devices not otherwise defined under section 1; provided that such motor vehicle is not eligible to be registered under chapter 90B. The registrar, in consultation with the division of insurance, may promulgate regulations defining each type of motor vehicle as well as requirements and any restrictions for registration and operation, equipment, inspections and insurance for such vehicles.

SECTION 17. Section 8B of said chapter 90, as so appearing, is hereby amended by striking out, in line 20, the words “or motorized scooter,”.

SECTION 18. Said chapter 90, as so appearing, is hereby further amended by inserting after section 63 the following section:-

Section 64. (a) For purposes of this section, the following terms shall have the following meanings, unless the context clearly requires otherwise:-

“Maximum designed speed tier classification system”, the system by which micromobility devices are categorized by the maximum speed, measured in miles per hour, the manufacturer designed the device to attain on a flat surface in normal conditions by an average rider.

“Speed Tier 0”, all unpowered micromobility devices and powered micromobility devices with a maximum manufacturer assisted or designed speed, whichever is higher, of 20 miles per hour, including unpowered micromobility devices, class 1 and class 2 e-bikes and mobility aid devices.

“Speed Tier 1”, powered micromobility devices with a maximum manufacturer assisted or designed speed, whichever is higher, between 21 miles per hour and 30 miles per hour, including, but not limited to, class 3 e-bikes.

“Speed Tier 2”, powered micromobility devices with a maximum manufacturer assisted or designed speed, whichever is higher, between 31 miles per hour and 40 miles per hour, provided that speed tier 2 shall not include, but not be limited to, low speed vehicles, limited use motorcycles or low speed motorcycles.

“Speed Tier 3”, powered micromobility devices with a maximum manufacturer assisted or designed speed, whichever is higher, greater than 40 miles per hour.

(b) Except as otherwise provided by state or federal law or regulations of the registrar, powered micromobility devices sold, leased, rented or operated in the commonwealth shall meet or exceed a battery safety standard of UL 2271, as certified by a nationally recognized testing laboratory.

(c) Except as otherwise provided by state or federal law or regulations of the registrar, powered micromobility devices sold, leased, rented or operated in the commonwealth, except e-bikes, shall meet or exceed a battery safety standard of UL 2272, as certified by a nationally recognized testing laboratory. Electric bicycles sold, leased, rented or operated in the commonwealth shall meet or exceed a battery safety standard of UL 2849, as certified by a nationally recognized testing laboratory.

(d) Except as otherwise provided by state or federal law or regulations of the registrar, motorized bicycles or mopeds powered by a lithium-ion battery sold, leased, rented or operated in the commonwealth shall meet or exceed an electrical system safety standard of UL 2850, as certified by a nationally recognized testing laboratory.

(e) (1) (A) Except as otherwise required by state or federal law or regulations of the registrar, speed tier 0 and speed tier 1 micromobility devices sold, leased, rented or operated in the commonwealth shall be equipped with lights, brakes and an audible warning that satisfy the requirements of Section 11B of Chapter 85 and federal requirements for bicycle reflectors and brakes established in 16 C.F.R. Part 1512.

(B) Except as otherwise required by state or federal law or regulations of the registrar, speed tier 2 and speed tier 3 micromobility devices sold, leased, rented or operated in the commonwealth shall be equipped with lights, brakes and a horn that satisfy the requirements for motor vehicles established in 49 C.F.R. 571.

(2) (A) Except as otherwise provided by state or federal law or regulations of the registrar, any person 16 years of age or younger operating a speed tier 0 micromobility device, except for a mobility aid device, or being carried as a passenger on such micromobility device on

a public way, bicycle path or on any other public right-of-way shall wear a helmet. Said helmet shall fit the person's head, shall be secured to the person's head by straps while the micromobility device is being operated, and shall meet the standards for helmets established by the United States Consumer Product Safety Commission pursuant to 16 C.F.R. 1203. These requirements shall not apply to a passenger if the passenger is in an enclosed trailer or other device which adequately holds the passenger in place and protects the passenger's head from impact in a crash.

(B) Except as otherwise provided by state or federal law or regulations of the registrar, a person operating a speed tier 1, 2 or 3 micromobility device or riding as a passenger on a micromobility device, shall wear protective headgear conforming with such minimum standards of construction and performance as the registrar may prescribe, and no person operating such a micromobility device shall permit any other person to ride as a passenger on such micromobility device unless such passenger is wearing such protective headgear.

(3) Except as otherwise required by state or federal law or regulations of the registrar, it shall be unlawful for any person younger than 16 years of age to purchase, rent, lease or operate any micromobility device designated as a speed tier 1, speed tier 2, or speed tier 3 micromobility device; provided, however this restriction shall not apply to mobility aid devices.

(4) Except as otherwise required by state or federal law or regulations of the registrar, it shall be unlawful for any person younger than 14 years of age to purchase, rent, lease or operate any micromobility device, powered micromobility device, motorized bicycle, or moped designated as a speed tier 0, speed tier 1, speed tier 2, or speed tier 3 micromobility device; provided, however this restriction shall not apply to solely human powered micromobility devices, unpowered micromobility devices or mobility aid devices.

(5) It shall be unlawful to operate a micromobility device with more passengers than the device was designed to accommodate by the manufacturer, except as may be allowed by regulation.

(6) (A) Except as otherwise provided by state or federal law or regulations of the registrar, speed tier 0 micromobility devices and the operator of a speed tier 0 micromobility device shall be afforded all of the rights and privileges, and shall be subject to all of the duties, of the operator of a bicycle or duties related to a bicycle set forth in sections 11B and 11B½ of chapter 85, or any other general or special law, regulation or local ordinance.

(B) Except as otherwise provided by state or federal law or regulations of the registrar, speed tier 1 micromobility devices and the operator of such speed tier 1 micromobility device shall be afforded all of the rights and privileges, and shall be subject to all of the duties, of the operator of an electric bicycle or duties related to an electric bicycle set forth in section 11B¾ of chapter 85, or any other general or special law, regulation or local ordinance.

(C) Except as otherwise provided by state or federal law or regulations of the registrar, it shall be unlawful for any speed tier 2 or speed tier 3 micromobility devices to travel on sidewalks, in bike lanes, bike paths, bike routes, separated micromobility lanes, or shared use paths.

(e) It shall be unlawful to make any aftermarket modifications to a micromobility device to increase either (i) the manufacturer designed speed or propulsion power of a micromobility device or (ii) the manufacturer designed passenger capacity of a micromobility device, except as may be allowed by regulation.

(f) No micromobility device shall be sold, rented, leased or operated in the commonwealth if it does not satisfy the requirements of this section for the device's respective speed tier based on the device's maximum manufacturer assisted or designed speed, whichever is higher.

(g) Micromobility devices shall be subject to any speed limits and speed restrictions for motor vehicles established by (i) municipalities or the division of highways of the Massachusetts Department of Transportation pursuant to sections 17 and 18 of chapter 90; (ii) regulations of the division of highways of the Massachusetts Department of Transportation under chapter 90E; or (iii) rules or regulations of the department of conservation. Violation of such speed limits and speed restrictions shall be subject to all civil and criminal fines applicable to the operation of a motor vehicle in violation of such speed limits and restrictions. Micromobility devices shall also be subject to all civil and criminal fines and penalties applicable to the operation of a motor vehicle under sections 24 through 24R, inclusive, section 24V and section 25 of chapter 90, provided that administrative penalties shall not apply, unless provided by regulations of the registrar. No micromobility device shall be subject to insurance requirements relative to said sections unless provided by regulations promulgated by the registrar.

(h) The registrar, in consultation with the division of insurance, may promulgate regulations establishing registration, licensure, insurance, fines and other requirements for micromobility devices necessary to promote public and roadway safety.

SECTION 19. Section 1 of chapter 90E of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by striking out the definition of "Bike path" and inserting in place thereof the following definition:-

“Bike path”, a route for the exclusive use of bicycles and speed tier 0 or speed tier 1 micromobility devices, separated by grade or other physical barrier from motor traffic; provided, however, that motorized bicycles shall not be permitted to use bike paths.

SECTION 20. Said section 1 of said chapter 90E, as so appearing, is hereby further amended by striking the definition of “bike lane” and inserting in place thereof the following:-

“Bike lane”, a lane on a street restricted to bicycles and speed tier 0 or speed tier 1 micromobility devices and so designated by means of painted lines, pavement coloring or other appropriate markings; provided that motorized bicycles shall not be permitted to use bike lanes.

SECTION 21. Said section 1 of said chapter 90E, as so appearing, is hereby further amended by striking out the definition of “bike route” and inserting in place thereof the following definition:-

“Bike route”, a roadway shared by bicycles, micromobility devices and other forms of transportation designated by the means of signs or pavement markings.

SECTION 22. Said section 1 of said chapter 90E, as so appearing, is hereby further amended by striking the definition of “bicycle parking facility” and inserting in place thereof the following:-

“Bicycle parking facility”, any facility for the temporary storage of bicycles or micromobility devices which allows the frame and the wheels of the bicycle or micromobility device to be locked so as to minimize the risk of theft and vandalism.

SECTION 23. Said section 1 of said chapter 90E, as so appearing, is hereby further amended by inserting after the definition of “commissioner” the following definition:-

“Shared use path”, a path intended for transportation or recreational use that is designed for people of all ages and abilities on foot or using motorized or non-motorized micromobility devices and is physically separated from motorized vehicle traffic within a highway right-of-way or an independent right-of-way with few crossflows with motor vehicles.

SECTION 24. Section 2 of chapter 90E of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by adding the following paragraph:-

The maximum speed for micromobility devices, as defined in section 1 of chapter 90, on shared use paths shall be 20 miles per hour, unless decided otherwise by the municipality in which the shared use path is located. Nothing in this paragraph shall be construed as prohibiting or limiting a municipality from setting a maximum speed for a shared use path located within its boundaries.

SECTION 25. There shall be a working group consisting of the registrar of motor vehicles or their designee, the administrator of the Massachusetts Department of Transportation highway division or their designee, the secretary of the executive office of public safety and security or their designee, the commissioner of the division of insurance or their designee, the commissioner of the department of conservation and recreation or their designee, the commissioner of the department of public health or their designee, 1 representative of the Massachusetts Municipal Association who shall appointed by the secretary of transportation, 1 representative of the micromobility device industry who shall be appointed by the secretary of transportation, 1 representative of a citizen advocacy group appointed by the secretary of transportation and 1 representative of the Massachusetts Chiefs of Police Association appointed

by the secretary of the executive office of public safety and security. The working group shall be chaired by the registrar of motor vehicles or their designee.

The working group shall develop recommendations for a regulatory scheme and additional legislation for the operation of micromobility devices, as provided in the report of Special Commission on Micromobility and as specified in this section. The working group shall make recommendations for requirements for micromobility registration or identification decal, licensure to operate, clarify the roles of dealers and manufacturers, education, speed restrictions, signage, travel allowances, insurance requirements, fines and penalties and additional operation and safety standards and requirements for micromobility devices.

The working group shall develop a standardized form to report crashes and incidents involving a motor vehicle, a vulnerable user or any micromobility device, as defined in section 1 of chapter 90 of the General Laws. The standardized form shall be used by any municipal, county or state law enforcement official or emergency medical services provider who responds to a crash or incident involving a motor vehicle, a vulnerable user or any micromobility device. The corresponding report for each crash or incident shall be transmitted to the registrar of motor vehicles. The registrar of motor vehicles shall maintain a publicly accessible database of the standardized form reports; provided, however, that no personally identifying information shall be published in the database.

The working group shall complete its work and issue a report of its findings and recommendations by December 31, 2027 to be published on its website.

SECTION 26. Sections 7, 10, 13, 14 and 16 through 22, inclusive, of this act shall take effect on January 1, 2028.